

23NWCV03268 23NWCV03268

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Case Number: 23NWCV03268 Hearing Date: July 14, 2026 Dept: C

TSIBEL DENTAL CORPORATION, A CORPORATION, et al. vs
ROSEWOOD LAND CO., A CORPORATION, et al.

CASE NO.: 23NWCV03268 (Lead)

25NWCV04115 (Related)

HEARING: 07/14/2026 @
9:30 AM

#9

TENTATIVE ORDER

Defendant Rosewood Land Company's Motion for an Order for Plaintiff Tsibel
Dental Group to pay rent to escrow is DENIED.

Plaintiff to give notice.

Defendant Rosewood Land Company (Rosewood) moves for an
Order to require Plaintiff Tsibel Dental Group (Tsibel) to pay rent to the
Court or escrow during the pendency of litigation pursuant to Code of Civil
Procedure §1170.5.

Background

In the instant action, Case No. 23NWCV03268, Plaintiffs
TSIBEL DENTAL CORPORATION, TSIBEL DENTAL GROUP INC. dba BELLFLOWER DENTAL

GROUP, and DR. ARKADY TSIBEL ("TSIBEL Plaintiffs or TSIBEL") filed a Complaint against Defendants ROSEWOOD LAND COMPANY (ROSEWOOD) and AM PAINTING, INC. alleging they were grossly negligent when repairing the roof of the building owned by ROSEWOOD and occupied by TSIBEL, resulting in extensive water damage to TSIBEL's dental practice on August 15, 2023 and again on August 20, 2023.

Rosewood filed a Cross-Complaint against Cross-Defendants AM PAINTING INC., BRUCE ROOFING CALIFORNIA, INC., and CLONTS ROOFING (Cross-Defendants) alleging that on or about August 13, 2023, Cross-Defendants started work on the Property, and engaged in the removal of the existing roof, while leaving the underlying structure and property inside of the Building uncovered and exposed to the environmental elements. Subsequent rainstorms caused damage to the Property.

Case Number 25NWCV04115 is a related unlawful detainer action filed by ROSEWOOD against TSIBEL on November 19, 2025. The cases were deemed related by this Court on February 4, 2026. On February 19, 2026, the Court stayed the unlawful detainer action and ordered the parties to meet and confer regarding rent payment and repairs, and if no agreement is reached, Rosewood may move for a court order. On March 24, 2026, the Court affirmed the stay it imposed in the unlawful detainer case when it denied Tsibel's motion to consolidate.

On March 25, 2026, pursuant to an ex parte application brought by Rosewood, the Court ordered Tsibel to permit Rosewood access to the Subject Property within 30 days for the purpose of inspecting, securing, and repairing any and all damaged portions of the Subject Property in accordance with the lease. The Court ordered the parties to meet and confer regarding the scheduling of repairs and, if necessary, storage of Tsibel's property pending repairs. Rosewood's request for an order requiring Tsibel to pay rent was denied without prejudice to Rosewood filing a noticed motion requesting payment of rent, or on the alternative, posting of a bond. Rosewood proceeded to file the instant motion on April 8, 2026.

Legal Standard

Code of Civil Procedure section 1170, subd. (c) provides:
"If trial is not held within the time specified in [Section 1170], the court, upon finding that there is a reasonable probability that the plaintiff will

prevail in the action, shall determine the amount of damages, if any, to be suffered by the plaintiff by reason of the extension, and shall issue an order requiring the defendant to pay that amount into court as the rent would have otherwise become due and payable or into an escrow designated by the court for so long as the defendant remains in possession pending the termination of the action.”

Further, “[t]he determination of the amount of the payment shall be based on the plaintiff’s verified statement of the contract rent for rental payment, any verified objection thereto filed by the defendant, and the oral or demonstrative evidence presented at the hearing. The court’s determination of the amount of damages shall include consideration of any evidence, presented by the parties, embracing the issue of diminution of value or any set off permitted by law.” (Code Civ. Proc., § 1170.5, subd. (c).)

Discussion

As a preliminary matter, the Court notes that the instant motion is brought by “UD Plaintiff” Rosewood against “UD Defendant” Tsibel Dental Group. Because the UD action has been stayed since February 19, 2026, these designations are not useful in the context of the pending unlimited civil action. Instead, the Court will refer to the parties in accordance with the Complaint filed by Tsibel; that is, “Plaintiff” or “Tsibel,” and “Defendant” or “Rosewood.”

Rosewood contends that after the rainstorm caused water damage to the premises in 2023, the parties initially agreed that Tsibel would pay 25% of the rent until the premises were repaired. Since 2023, Tsibel has refused access to the Subject Property by Rosewood for the purpose of completing repairs. Had Tsibel allowed Rosewood to timely complete repairs, the premises would have been fully operational, and full rent restored, by August 1, 2024. Moreover, Tsibel has failed to comply with the Court’s March 25, 2026 order requiring Tsibel to permit Rosewood to access the Subject Property in accordance with the lease.

In fact, shortly after the order was issued, UD Plaintiff’s mold remediation company was verbally abused and kicked off the property. (Reply, 4: 11-16.) Thus, Rosewood requests “Tsibel to post a bond for the full amount of rent from August 2024 through the date of trial, March 16, 2027, a

period of 32.5 months.” (Mot., 6:13-14.) This equals a principal bond amount of \$731,725.50. Alternatively, UD Plaintiff requests that the Court calculate the amount of the bond or monthly rent payment from March 2026, the month following the initial UD trial setting, through the current date of trial, March 16, 2027, a period of twelve months.

In opposition, Tsibel argues that the \$731,725.50 figure assumes 100% of contract rent is owed from August 1, 2024, which is factually and legally contested and cannot be accepted as the basis for a payment order without an evidentiary hearing on the actual rental value of the damaged premises. Moreover, Rosewood has failed to establish a reasonable probability that it will prevail on its claim that Tsibel owes the full contractual rent beginning August 1, 2024. The documentary record demonstrates the existence of a negotiated rent-abatement agreement, Tsibel's continued compliance with that agreement, ongoing disputes regarding the scope and timing of repairs, and substantial factual disagreements concerning access to the premises and the continuing diminished condition of the property.

In Reply, Rosewood asserts that the remediation work requires asbestos and mold abatement which does not allow for the continued operation of Tsibel's dental practice during remediation. Rosewood points out that the allegations in Tsibel's Complaint contradict Tsibel's assertion that it continues to operate a dental practice on the premises. (See, e.g., Complaint, para. 2 (“The vast damage to the interior of the property completely destroyed the dental practice that was operating therein and all dental operations have ceased”.) Rosewood also alleges that Tsibel operates a dental practice in other locations, so Tsibel should be able to redirect its clients to those locations during the repair period.

The Court is troubled by the fact that Tsibel has not complied with this Court's March 25, 2026 order to grant Rosewood access to the Subject Property within 30 days for the purpose of conducting the necessary repairs. It is undisputed that the Subject Property experienced “vast damage to the interior” and it needs major repairs. It is also undisputed that Rosewood has a right of entry to make repairs pursuant to the express terms of the lease. No justification appears in this record for Tsibel's delay in complying with the Court's March 25 order.

Rosewood relies upon CCP §§ 1170 and 1170.5 in urging this Court to order Tsibel to pay the full amount of rent under the lease pending trial. However, these code sections pertain to

unlawful detainer actions, and as noted above, the related unlawful detainer action has been stayed since February 19, 2026.

Therefore, neither CCP § 1170 nor CCP § 1170.5 can provide relief for Rosewood at this time. The motion to require Tsibel to pay rent must be DENIED.

When the Court

issued its meet and confer order on March 25, 2026, it was hopeful that the parties could come to an agreement regarding repairs because it is in the best interest of the parties to do so. After 111 days, no such agreement has been reached despite the obvious need for repairs to the Subject Property. With this ruling, the Court expresses no opinion regarding Rosewood's entitlement to relief by other means. The stay imposed by the Court in the unlawful detainer action does not preclude Rosewood from pursuing a separate unlawful detainer action on independent grounds.